

TENTATIVE RULINGS

**DEPT. C-16
(657-622-5216)**

**Judge David A. Hoffer
April 21, 2025**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department C16 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2021-01223909 Horsfall vs. French Park Care Center	Before the court is Defendants Bartlett Care Center, LLC, Donna Kimura, and John Kimball (collectively "Defendants")' Motion to Compel Production and Compliance with Subpoena for Business Records. The motion is DENIED without prejudice.

		CRC 3.1346 states that “A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record.” Here, there is no deposition record specifying an agreement to accept service by mail or electronic service. Accordingly, the motion must be served on the nonparty deponent personally. The proof of service attached to the motion shows it was served on non-party deponent by mail on 10/22/24, which is not sufficient. Accordingly, the motion is denied without prejudice. Moving party is ordered to give notice of this ruling.
2	30-2022-01252131 Mann vs. Knuppel	Before the court is the unopposed Motion for Attorney’s Fees and Costs Pursuant to Code of Civil Procedure § 473(b) filed by Defendants Neil W. Knuppel and Neil W. Knuppel, A Professional Law Corporation (collectively “Defendants”). The motion is GRANTED in part. A court granting mandatory relief pursuant to section 473(b) shall direct the attorney to pay “reasonable compensatory legal fees and costs to opposing counsel or parties.” (Code Civ. Proc., § 473(b) [emphasis added].) At hearing on the Motion to Vacate from 7/15/24, the court ruled: “The Knuppel Defendants request attorney fees in the amount of \$7,759.00 that were incurred “in dealing with the Motion to Confirm and opposing Plaintiff’s present motion to vacate.” (Newcomb Decl. ¶ 23.) The Knuppel Defendants’ counsel, however, did not provide a breakdown of their time. Consequently, the court cannot determine whether the requested fees are reasonable. Should they desire, the Knuppel Defendants’ may file a noticed motion for attorneys’ fees.” Defendants have filed the present motion seeking those fees, but now request fees and costs totaling \$15,201.04, broken down as \$12,978.50 in attorney’s fees and \$2,222.54 in costs, but still do not present a breakdown of hours. Based on counsel’s asserted rate of \$265/hour, the original requested